25STCV31381 25STCV31381

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV31381 Hearing Date: July 7, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.
Kalra, Department 511

HEARING DATE: July
8, 2026

CASE NAME: Drew
Goulson, et al. v. General Motors LLC, et al.

CASE NO.: 25STCV31381

MOTION
TO SEVER

MOVING PARTY: Defendant
General Motors LLC

RESPONDING PARTY(S): Plaintiffs Drew Goulson, Samuel
Joffee, and Jonathan Quinn

REQUESTED RELIEF:

1. An
order directing separate trials of each individual Plaintiff’s claims.

TENTATIVE RULING:

1. Motion
for severance of trial is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On October 28, 2025, Plaintiffs Drew Goulson, Samuel Joffee, and Jonathan Quinn (Plaintiffs) filed a complaint against General Motors LLC (GM) and Cadillac Beverly Hills (CBH) (sometimes collectively Defendant) with causes of action for: (1) violation of lemon law; (2) breach of implied warranty of merchantability; (3) negligent repair; (4) misrepresentation; and (5) violation of Magnuson-Moss Warranty Federal Trae Commission Improvement Act.

According to the complaint, Plaintiffs leased three different Cadillac vehicles that developed substantial defects early in their use, leading to repeated but unsuccessful repair attempts at GM-authorized facilities and leaving the vehicles out of service for more than 30 days. Despite providing notice and requesting repurchase or replacement under the Song-Beverly Act, GM and CBH refused, even though the defects impaired the vehicles' use, value, and safety. Plaintiffs allege GM misrepresented the vehicles' condition, failed to honor their warranties, and lacked a compliant dispute-resolution program, causing them significant financial harm.

On December 3, 2025, GM filed an answer.

On December 16, 2025, CBH filed an answer.

On April 14, 2026, GM filed the instant motion to sever. That same date, Plaintiffs filed an opposition. On June 30, 2026, GM filed a reply.

LEGAL STANDARD:

Under Code of Civil Procedure (CCP) § 1048(b), "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (See also Pilliod v. Monsanto Co. (2021) 67 Cal.App.5th 591 [abrogated on other grounds by Mondanto Company v. Durnell (2026) 609 U.S. ----.] (Pilliod).)

"When parties have been joined under Section 378 or 379, the court may make such orders as may appear just to prevent any party from being embarrassed, delayed, or put to undue expense, and may order separate trials or make such other order as the interests of justice may require." (CCP § 379.5.)

ANALYSIS:

GM contends severance is proper because each Plaintiff's claims arise from wholly independent transactions, involve completely different vehicles, and even involve different law. They add the risk of jury confusion is great and separate trials will promote judicial economy.

Plaintiffs argue that various TSBs show that issues overlap between the subject vehicles, the warranty booklets are the same, the manufacturer is the same, the defective components are the same across vehicles, that separate trials would be a waste of juror's time and of the court's and parties' resources. They further argue that any problems can be adequately addressed by a limiting instruction or standard trial-management techniques.[1]

GM replies that Plaintiffs' own evidence proves GM's point that these claims should be severed. They add the Plaintiffs' counsel's declaration is insufficient to show the technical propositions on which Plaintiffs depend.

Plaintiffs may be joined when they assert a right to relief "in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action." (David v. Medtronic, Inc. (2015) 237 Cal.App.4th 734, 741 (David) [citing CCP § 378(a).])

In David, the Court of Appeal agreed with the trial court's ruling severing the action by 37 different patient plaintiffs against the same defendants. (David, supra, 237 Cal.App.4th at p. 741.) There, the plaintiffs' only common factor was that they used the same implant. (Ibid.) The Court reasoned that this was insufficient without allegations of the same class of surgery, same representations inducing the surgery, and that the implant failed in the same way. (Ibid.) Thus, severance was proper since there were different surgeries, different surgeons, different knowledge and exposure to different representations. (Ibid.)

In Pilliod, the Court of Appeal distinguished David and concluded that denying severance was appropriate. There, the plaintiffs "ha[d] far more in common than the mere fact that each was exposed to Roundup" which allegedly caused their cancer. (Pilliod, supra, 67 Cal.App.5th at p. 628.) The Court reasoned that severance was not appropriate because the evidence of "when and where" they used the product was the same and they developed the same disease. (Id. at p. 626.) Thus, the Court found that "the considerations of convenience, expedition, and economy supporting the trial court's decision not to sever" the claims. (Ibid.)

This case is more like David than Pilliod. First, it involves two different state's laws – California's Song-Beverly Act and Nevada's Lemon law. (Compl. ¶¶ 19, 37.) Second, it involves three separate vehicles, different models, and different lease dates. (Compl. ¶¶ 20-22; see also Declaration of Ryan Kay (Kay Decl.) ¶¶ 5, 6, 7, 8.) Third, it involves different repair histories. (See Compl. ¶¶ 39, 51; Kay Decl. ¶ 9.) It is clear that the Plaintiffs only share leasing a vehicle manufactured by GM that allegedly experienced defects.

The court is not persuaded by Plaintiffs' arguments that the repair orders show common defects to the ADAS, HVAC, and BCM systems which, considered with the technical service bulletin (TSB) on these issues, is sufficient evidence against severance. Indeed, this helps GM's position by bolstering the differences in the evidence for the repair histories of each vehicle. What is more, reliance on the TSB does not make the evidence "far more common" between the Plaintiffs. An overlap in evidence (the TSB) is different from mostly the same evidence. (See Pilliod, supra 67 cal.App.5th at p. 627-628 [discussing cases].) What is more, GM points out that the TSB only covers one of the three vehicles.

Therefore, the considerations of convenience, expedition, and economy weigh in favor of severance.

Accordingly, the court GRANTS GM’s motion to sever.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
for severance of trial is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 8, 2026 ___________________________________ Upinder
S. Kalra

Judge
of the Superior Court

[1]
Plaintiffs also argue that keeping the matters together will promote settlement. The court declines to address this argument.